

Court No. - 10

Case :- CONTEMPT APPLICATION (CIVIL) No. - 4103 of 2019

Applicant :- Smt. Santosh Kumari

Opposite Party :- Sri. Avaneesh Pratap Singh, Executive Engineer

Counsel for Applicant :- Virendra Kumar, Babu Lal Ram

Hon'ble Mahesh Chandra Tripathi, J.

Heard learned counsel for the applicant.

The applicant is before this Court for a direction to initiate contempt proceeding against the opposite parties for wilful disobedience of the order dated 31.01.2019 passed in Writ Petition No.1950 of 2019 (Smt. Santosh Kumari v. State of U.P. & Ors.), which for ready reference is quoted as under:-

"Heard Sri Babu Lal Ram, learned counsel for the petitioners and Sri Mukesh Kumar Singh, learned counsel for the respondents no. 3&4 and the learned Standing Counsel for the respondents no.1&2.

The petitioner in the writ petition is seeking quashing of the demand notice dated 12.12.2018/15.12.2018.

On 22.01.2019 this Court has passed the following order :-

"Heard Sri Babu Lal Ram, learned counsel for the petitioner, learned Standing Counsel for the respondents no. 1 & 2 and Sri Mukesh Kumar Singh, learned counsel for the respondents no. 3 & 4.

The petitioner in the writ petition is seeking quashing of the demand notice dated 12.12.2018/15.12.2018. Earlier the petitioner filed writ petition no. 34740 of 2018 challenging the demand notice of Rs.379636/-. That writ petition was disposed of by the Court vide order dated 30.10.2018 with a direction to the Executive Engineer to decide the petitioner's objection filed under Section 6.5 of the Electricity Supply Code, 2005. According to the petitioner, she has filed her objection dated 28.11.2018 before the Executive Engineer, Electricity Power Distribution, Madhyanchal Vidyut Vitran Khand-II, District Budaun, respondent no. 3 but without passing any order a fresh demand notice, which is impugned in the present writ petition, has been issued.

Counsel for the respondents no. 3 & 4 is directed to obtain instructions in the matter as to whether petitioner's objection dated 28.11.2018 has been disposed of or not and if disposed of, what order has been passed.

Put up as fresh on 31 January, 2019 to enable the counsel for the respondents no. 3 & 4 to obtain instructions in the matter. "

Learned counsel for the respondents fairly stated before the Court that the objections submitted by the petitioner under Clause 6.5 of the Electricity Supply Code, 2005 has not been decided till date.

We, therefore, quash the demand notice dated 12.12.2018/15.12.2018 (Annexure no.7 to the writ petition) and direct the respondent no.3-Executive Engineer, Electricity Power Distribution Madhyanchal Vidyut Vitran Nigam, Ltd. Budaun to consider and decide the petitioner's objections in accordance with law within three months from today.

The writ petition stands allowed."

Learned counsel for the applicant submits that a certified copy

of the aforesaid order was submitted for compliance before the opposite parties but the opposite parties have wilfully not complied with the order and, thus, have committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite parties to comply with the aforesaid order of the Court within three weeks from the date of production of a certified copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite parties and another self-addressed stamped envelope to the office within one week from today. The office shall send a copy of this order along with the self-addressed stamped envelope of the applicant with a copy of contempt application to the opposite parties within one week, thereafter and keep a record thereof. The opposite party shall comply with the directions of the writ Court and intimate the applicant of the order through the self-addressed envelope within a week, thereafter.

With the aforesaid observations, this application is **disposed of** at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite parties within the stipulated time as aforementioned.

Order Date :- 11.7.2019

SP/